

K. Seat Belt Policy. The City requires all employees to wear seat belts, whenever they drive or ride in City vehicles, or when traveling in a privately-owned vehicle on City business. When driving, employees are responsible for requiring all passengers to fasten their seat belts before operating the vehicle.

L. Accidents Involving City Vehicles and/or Employees. In the event of an accident or property damage to an employee's vehicle, employees using a personal automobile for authorized travel in conducting City business must rely on personal assets, including insurance, for financial protection. Although City interests are protected by insurance, the City provides no insurance and assumes no liability to protect employees against damage to the employee's personal automobile or for damage to the property of others for death or personal injury to others as a result of an employee using a personal automobile in conducting City business. It is the express policy of the City that all liability and/or property damage incurred while use of a personal vehicle on City business either en route, parked at City facilities or while in engaged in City business at non-City facilities, falls entirely on the employee.

M. Coverage for Injuries. Employees suffering injury, dismemberment or death arising from an accident incurred in the performance of City business shall be covered under the terms of the California Workers' Compensation laws and current City Workers' Compensation policies.

#### **SECTION 4: HOURS OF WORK, HOLIDAYS AND LEAVE**

##### **Rule 31      Hours of Work, Overtime, Compensatory Time and Standby Time**

A. Work Week. An employee's work week is a fixed and regularly recurring period of 168 hours, i.e. seven consecutive 24 hour periods. It need not coincide with the calendar week but may begin on any day and at any hour of the day. The City may have different work weeks for different employees or groups of employees as determined by the City Manager. The City may change the employee's work week, but the changes must be permanent. The Human Resources Director shall assign each employee of the City a regular work week.

B. Work Schedules. Every employee shall have an approved work schedule, which is established by the Human Resources Director and approved by the Appointing Authority. Management reserves the right to set schedules to accomplish the work tasks of the City. No alternative work schedule shall be proposed or approved which imposes an additional financial burden on the City for overtime or otherwise.

C. Fair Labor Standards Act ("FLSA") Requirements. Supervisors responsible for scheduling shall ensure that full-time schedules meet FLSA requirements and provide for a forty (40) hour work week.

D. Pay Periods. The pay period shall be a two (2) week period beginning on alternate Saturdays. Step increases or promotions shall be effective at the beginning of the pay period in which they fall.

E. Overtime.

1. Policy. Non-exempt employees may be required to work overtime at the discretion of the Department Director, with the prior approval of the City Manager.

2. Definition. Overtime for non-exempt employees is all hours the employee actually works over 40 hours in the employee's designated work week.

3. Prior Authorization Required.

a. Prior authorization before working any overtime is required. Employees may not work outside of scheduled working hours or during unpaid meal periods, without the prior written authorization of a supervisor. Failure to follow these overtime authorization procedures will result in non-exempt employees being paid for the legitimate overtime worked, and being subject to discipline.

b. In certain limited situations, overtime may be authorized retroactively. In such situations, the employee must notify a supervisor as soon as possible of the overtime worked, and in no event later than the end of the following work day. Overtime may be authorized under the following circumstances:

(1) In emergency situations (generally caused by inclement weather or disaster).

(2) To complete projects which are begun one day and would be difficult, awkward or impossible to complete during regular working hours the next day.

(3) In situations where a job completion is deemed essential by the Department Director or City Manager.

4. Manner and Form of Compensation.

a. Overtime assigned and worked by non-exempt employees shall be compensated at time and one-half (1-1/2) the employee's regular rate of pay.

b. The employee may request, and the Department Director shall have the unrestricted discretion to approve or not approve, compensation in the form of accrued compensatory time at time and one-half (1-1/2), except that an employee may not accrue more than forty (40) hours of compensatory time at any time. With City Manager approval, the maximum amount of accrued compensatory time may be extended to eighty (80) hours. Overtime shall be credited in fifteen (15) minute increments with no credit given for time worked which is less than fifteen (15) minutes.

c. Selection of pay or compensatory time shall be made during the pay period in which the overtime hours are worked.

d. Credited compensatory time spent shall be taken as time off except upon termination of the employee or as otherwise approved by the City Manager. A Department Director may decide when an employee may take all or part of his/her accumulated compensatory time.

e. Requests by an employee for the use of accrued compensatory time shall be subject to the convenience of the City and to the extent authorized by law.

f. Time worked as overtime shall not be used to earn supplemental benefits or to serve out probation or merit salary increase periods.

5. Allocation. Insofar as is feasible, allocation of overtime shall be equally distributed among employees of affected classifications.

6. Required Attendance at Training on Off-day. The City shall compensate non-exempt employees who are required to attend training on an off-day pursuant to requirements of the FLSA. Exempt employees who attend training or conferences on their off-day shall not receive in lieu off-days.

7. Overtime Worked on Call Back or on Regularly Scheduled Vacation Days or City Holidays. Employees called from home to perform overtime work, or required to work on a regular City holiday or on a scheduled vacation day, shall be entitled to overtime compensation in accordance with the requirements of the FLSA.

F. Standby Time. Standby means a period of time outside an employee's regularly scheduled work hours during which the employee is required to remain available (on-call) for emergencies with a specified response time. The on-call period is to be determined by the direct supervisor. The supervisor shall be responsible for preparing an on-call schedule. In the event that an employee does not wish to serve standby time, the employee may be excused if another worker volunteers to serve in his/her place.

1. City Vehicle. A City vehicle shall be made available to the on-call employee. The employee shall use this vehicle only for the performance of related duties and not for personal use. Non-employees or family members are not to be transported at any time.

2. Accessibility of On-call Personnel. The on-call employee shall carry a pager and/or City issued radio at all times. On-call employees are required to make contact via phone or pager. The on-call employee shall not engage in any activity while on-call, which could impair the employee's function (such as alcohol consumption). No employee shall be on-call for more than seven (7) consecutive days. An employee on standby, who is not available when called and does not present a reasonable justification for failure to report when called, shall lose standby compensation for that standby period and may be subject to disciplinary action.

3. Compensation. All City personnel, including exempt employees, who are authorized to serve as the on-call personnel, shall be entitled to receive standby and overtime pay. Each employee who is eligible for standby pay shall be compensated at the flat rate of twelve dollars (\$12.00) per day for after hours on regular working days and twenty-four dollars